

24AVCV01588 24AVCV01588

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 24AVCV01588 Hearing Date: July 21, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

LAMONT S. WADE, JR. aka LORD CHUBBS,

Plaintiff,

v.

UNIVERSAL MUSIC GROUP aka UMG,

Defendant.

Case Number 24AVCV01588

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 21, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a property damage and personal injury case. Presently, Defendant Universal Music Group, Inc. (erroneously sued as Universal Music Group aka UMG) (Defendant) moves the Court for entry of judgment. Plaintiff Lamont S. Wade, Jr. aka Lord Chubbs (Plaintiff) moves the Court for an order to set aside the judgment.

On December 6, 2024, Plaintiff filed his form complaint against Defendant, asserting personal injury and property damage. Plaintiff alleges he suffered wage loss, general damage, property damage, and loss of earning capacity, and seeks \$25 billion in damages. (Compl., ¶¶ 11, 14.)

On May 6, 2025, Defendant answered the complaint, asserting four affirmative defenses.

On November 19, 2025, Defendant filed a motion for judgment on the pleadings.

On February 17, 2026, the Court granted Defendant's unopposed motion for judgment on the pleadings. Plaintiff did not appear at the hearing. Plaintiff was given 30 days' leave to amend.

On February 25, 2026, Plaintiff filed a motion to set aside or vacate judgment.

On April 1, 2026, Defendant filed a motion for entry of judgment.

On July 8, 2026, Defendant filed its opposition to Plaintiff's motion to set aside or vacate judgment.

Defendant's motion for entry of judgment is unopposed.

II. Legal Standard

Standard for Motion to Set Aside / Vacate Judgment – The Court may, upon just terms, relieve a party from a judgment, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) An application for relief must be accompanied by a copy of a proposed pleading to be filed therein, otherwise the application shall not be granted. (Ibid.)

Standard for Entry of Judgment – When leave to amend is granted on a motion for judgment on the pleadings as to the entire complaint, and an amended complaint is not filed within the time allowed, judgment "shall be entered forthwith" in favor of the moving party. (Code Civ. Proc., § 438, subd. (h)(4)(C).) Where a motion for judgment on the pleadings is granted with leave to amend, and no amended pleading is filed, the party shall move for entry of judgment in its favor. (Code Civ. Proc., § 483, subd. (i)(1)(B).) All such motions must be made pursuant to Code of Civil Procedure section 1010. (Code Civ. Proc., § 483, subd. (i)(2).)

Notices for motions for entry of judgment must be in writing, and the notice of motion must state when, and the grounds upon which it will be made, and the papers upon which it is to be based. (Code Civ. Proc., § 1010.)

III. Discussion

Application – Plaintiff moves to vacate or set aside the judgment. (Plaintiff's Motion, p. 1:25-26.) Defendant moves for entry of judgment following the Court's granting of Defendant's motion for judgment on the pleadings and Plaintiff's failure to file an amended pleading. (Defendant's Motion, p. 4:9-12.)

a. Plaintiff's Motion to Vacate Judgment

Plaintiff moves to vacate or set aside judgment on two grounds: (1) contractual obligations are public via Google which shows damages of two artists, including Plaintiff, the neglect of safety protection and awareness protocols, and defamation, and (2) Plaintiff went to the hospital on February 17, 2026. (Plaintiff's Motion, p. 1, 2:3.)

The Court notes that at the time of filing, no judgment has been entered. However, it appears that Plaintiff requests that the Court vacate its February 17, 2026 Order granting Defendant's motion for judgment on the pleadings. The Court declines.

Defendant's motion for judgment on the pleadings was unopposed by Plaintiff, and Plaintiff did not attend the hearing on the motion on February 17, 2026. (See Minute Order dated 2/17/26.) On February 19, 2026, Plaintiff filed a doctor's note, which established that Plaintiff went to Antelope Valley Medical Center on February 18, 2026 for an acute upper respiratory infection and a cough. (Notice of Emergency Doctor's Note filed 2/19/26.) This note does not excuse Plaintiff's absence from the hearing on February 17, 2026, nor does it explain why he did not file any opposition to Defendant's motion. No evidence has been presented that Plaintiff attempted to reach out to Defendant to continue the hearing date or explain the circumstances surrounding his illness.

Much more importantly, Plaintiff's non-appearance at the hearing of February 17, 2026 played no part in the Court's decision. The Court Order granting Defendant's motion for judgment on the pleadings was proper regardless of Plaintiff's non-appearance, and regardless of Plaintiff's non-opposition. (See *Todd v. Thirfty Corp.* (1995) 34 Cal.App.4th 986, 991 [granting relief under Section 473 due to mistake or inadvertence in failing to appear at hearing improper where there is no basis to conclude presence at the hearing would have altered the outcome].) Plaintiff's complaint is entirely devoid of specific causes of action asserted and contains no factual allegations. (See generally Plaintiff's Complaint.) Plaintiff cites no law or facts which support an alternate ruling, and his evidentiary offerings of what appear to be AI Google results do not bear on the sufficiency of his complaint. (See Plaintiff's Motion, p. 1; Evidence Copies dated 10/13/25.) Plaintiff also presents no proposed amended complaint or other pleading as required by California Code of Civil Procedure section 473, subdivision (b) and is not in proper format. The Court finds no reason to vacate this Order.

Accordingly, Plaintiff's request is DENIED.

b. Defendant's Motion for Entry of Judgment

Defendant moves the Court for entry of judgment following the Court's granting of its motion for judgment on the pleadings. (Defendant's Motion, p. 4:9-12.)

Entry of judgment is not automatic, and the prevailing party on the motion for judgment on the pleadings must make a motion for entry of judgment, as Defendant did here. (Code Civ. Proc., § 438, subd. (i)(1)(B).) Defendant's motion complies with Code of Civil Procedure section 1010 as required, and the attached proof of service establishes Plaintiff was served on April 1, 2026 via mail and e-mail with the motion. (Defendant's Motion, Proof of Service.) Plaintiff failed to amend his complaint within the 30 days granted by this Court. Plaintiff has not opposed this motion and has not offered any proposed amended complaint.

Accordingly, Defendant's motion for entry of judgment is GRANTED.

IV. Conclusion

Plaintiff Lamont S. Wade Jr.'s Motion to Set Aside or Vacate Dismissal is DENIED.

Defendant Universal Music Group's Motion for Entry of Judgment is GRANTED.